TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 919]

ALASKA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 3946 OF JANUARY 21, 1924

By virtue of the authority vested in the President by the act of March 12, 1914 (38 Stat. 305, 307; 48 U. S. C. 304), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 3946 of January 21, 1924, reserving lands for use in connection with the construction, operation, and maintenance of railroad lines, which was partially revoked by Public Land Order No. 816 of April 14, 1952, is hereby revoked as to the land remaining therein, except the following-described areas, which shall remain reserved to the Alaska Railroad for the construction, operation, and maintenance of railroad lines:

FAIRBANKS MERIDIAN

A strip of land 400 feet wide, in lot 2 and the N½SW¼NE¼ sec. 4, T. 14 S., R. 7 W., being 200 feet on either side of the center line of and parallel to the main track of the Alaska Railroad, from Survey Station 16598+32.2, from which the southeast corner of the NE¼SW¼NE¼ sec. 4 bears N. 89° 55′ E., 646.6 feet; to Survey Station 16618+62.4, from which the northeast corner of lot 2, said sec. 4, bears East, 783.9 feet.

The tract described contains approximately 18.0 acres.

A strip of land in the S½ lots 2 and 3, sec. 4 T. 14 S., R. 7 W., lying between the exterior clearance lines which are 8 feet from and parallel to the center lines of the existing wye tracks, which run in a generally westerly direction approximately 1,000 feet from the westerly limit of the above described 400 foot strip and approximately opposite Survey Station 16604+94.6, as shown on map entitled "Map of S. 4, T. 14 S., R. 7 W., F. M., showing A. R. R. Reserve at Mt. McKinley Park Station" File 1082–134, revised June 1951, on file in the Bureau of Land Management.

The tract described contains approximately 0.4 acre.

The areas released from withdrawal by this order aggregating approximately 205.20 acres, are within the boundaries of the Mount McKinley National Park as changed by the act of March 19, 1932 (47 Stat. 68; 16 U. S. C. 355). The said areas, together with all improvements thereon, are hereafter to be administered by the National Park Service as a part of Mount McKinley National Park, subject to the laws applicable thereto.

ORME LEWIS,
Assistant Secretary of the Interior.

OCTOBER 12, 1953.

[F. R. Doc. 53–8784; Filed, Oct. 15, 1953; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Parts 725, 726]

BURLEY, FLUE-CURED, FIRE-CURED, DARK AIR-CURED AND VIRGINIA SUN-CURED TOBACCOS

NOTICE OF DETERMINATIONS TO BE MADE WITH RESPECT TO TOBACCO MARKETING QUOTAS FOR 1954–55 MARKETING YEAR

Pursuant to the Agricultural Adjustment Act of 1938, as amended, the Secretary of Agriculture is preparing to proclaim national marketing quotas for Burley tobacco, flue-cured tobacco, fire-cured tobacco, dark air-cured tobacco, and Virginia sun-cured tobacco, for the 1954–55 marketing year, determine the amount of the national marketing quota for each such kind of tobacco, apportion the national marketing quotas among the several States, and convert the State marketing quotas into State acreage allotments.

The Agricultural Adjustment Act of 1938, as amended (7 U. S. C. 1312 (a)), provides that the Secretary of Agriculture shall proclaim a national marketing quota for each marketing year for each kind of tobacco for which a national marketing quota was proclaimed for the immediately preceding marketing year. The act (7 U. S. C. 1301 (b) (15)) defines "tobacco" as each one of the kinds of tobacco listed below comprising the types specified as classified in Service and Regulatory Announcement Numbered 118 (7 CFR Part 30) of the Bureau of Agricultural Economics of the Department:

Flue-cured tobacco, comprising types 11, 12, 13, and 14;

Fire-cured tobacco, comprising types 21, 22, 23, and 24;

Dark air-cured tobacco, comprising types 35 and 36;

Virginia sun-cured tobacco, comprising type 37;

Burley tobacco, comprising type 31;

Maryland tobacco, comprising type 32;

Cigar-filler and cigar-binder tobacco, comprising types 42, 43, 44, 45, 46, 51, 52, 53, 54, and 55;

Cigar-filler tobacco, comprising type 41.

The act provides that any one or more of the types comprising any such kind of tobacco shall be treated as a "kind of tobacco" for the purposes of this act if the Secretary finds that there is a difference in supply and demand conditions as among such types of tobacco which results in a difference in the adjustments needed in the marketings thereof in order to maintain supplies in line with demand.

The act (7 U. S. C. 1313 (i)) provides that notwithstanding any other provision of the act, whenever, after investigation, the Secretary determines with respect to any kind of tobacco that a substantial difference exists in the usage or market outlets for any one or more of the types comprising such kind of tobacco and that the quantity of tobacco of such type or types to be produced under the marketing quotas and acreage allotments established pursuant to this section would not be sufficient to provide an adequate supply for estimated market demands and carry-over requirements for such type or types of tobacco, the Secretary shall increase the marketing quotas and acreage allotments for farms producing such type or types of tobacco in the preceding year to the extent necessary to make available a supply of such type or types of tobacco adequate to meet such demands and carry-over requirements. The increases in farm marketing quotas and acreage allotments shall be made on the basis of the production of such type or types of tobacco during the period of years considered in establishing farm marketing quotas and acreage allotments for such kind of tobacco. The additional production authorized by this subsection shall be in addition to the national marketing quota established for such kind of tobacco pursuant to section 312 of this act. The increase in acreage under this subsection shall not be considered in establishing future State or farm acreage allotments.

National marketing quotas were proclaimed for the 1953–54 marketing year as follows:

Kind of tobacco:	*Federal Register*
Burley	17 F. R. 10134.
Flue-cured	17 F. R. 6022, 18 F. R. 172.
Fire-cured	17 F. R. 10589.
Dark air-cured	17 F. R. 10589.
Virginia sun-cured	17 F. R. 10135.

The act (7 U. S. C. 1312 (a)) provides that the Secretary shall also determine and specify in such proclamation the amount of the national marketing quota in terms of the total quantity of tobacco which may be marketed, which will make available during such marketing year a supply of tobacco equal to the reserve supply level. The act provides further that the amount of the 1954–55 national marketing quota may, not later than March 1, 1954, be increased by not more than 20 per centum if the Secretary determines that such increase is necessary in order to meet market demands or to avoid undue restriction of marketings in adjusting the total supply to the reserve supply level. The act (7 U. S. C. 1301 (b)) defines the "total supply" of tobacco for any marketing year as the carry-over at the beginning of the marketing year plus the estimated production in the United States during the calendar year in which such marketing year begins. "Reserve supply level" is defined as the normal supply plus 5 per centum thereof.